

Court No. - 21

Case :- WRIT - C No. - 24588 of 2015

Petitioner :- Manoj Kumar Srivastava

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Sanjay Pandey

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Vikram Nath,J.

Hon'ble Shashi Kant,J.

Heard learned counsel for the parties.

Learned Standing Counsel representing respondent no.1 and Sri Mahboob Ahmad, learned counsel representing respondent no.2 may file counter affidavit within a month. Petitioner will have two weeks thereafter to file rejoinder affidavit.

Issue notice to respondent no.3 returnable within six weeks.

List on the date mentioned in the notice.

The submission advanced on behalf of the petitioner is that on Tehsil Diwas dated 6.4.2015 the complaint made by respondent no.3 was inquired into and it was found that the petitioner had a valid connection (Annexure no.10 to the writ petition). Again in the Tehsil Diwas dated 18th April, 2015 another complaint made by respondent no.3 was entertained and on account of some objections relating to filing of documents of Nagar Palika, it was directed that the connection of the petitioner be severed. Along with supplementary affidavit filed today the petitioner has annexed material to show that the electricity connection has already been severed. Submission is that without affording any opportunity or notice to the petitioner the electricity has been disconnected. It is further submitted that respondent no.3 and the petitioner are litigating before the Civil Court and it is on this account false complaints have been repeatedly made by respondent no.3. Petitioner is entitled to interim relief.

As an interim measure, it is provided that respondent no.2 shall forthwith restore the Electricity Connection of the petitioner in any case within 48 hours from the date of production of certified copy of this order and shall further not disconnect the petitioner's connection till further orders of this Court provided the petitioner continues to deposit electricity bills that may be raised by the Department.

Order Date :- 29.4.2015

SS

Court No. - 34

Case :- WRIT - C No. - 24588 of 2015

Petitioner :- Manoj Kumar Srivastava

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Sanjay Pandey

Counsel for Respondent :- C.S.C.,Kailash Nath Singh,Mahboob Ahmad,Surya Bhan Singh

Hon'ble Sudhir Agarwal,J.

Hon'ble Vivek Kumar Singh,J.

1. As requested on behalf of Shri Mahboob Ahmad, learned counsel appearing for the respondent.
2. Passed over for the day.

Order Date :- 27.10.2017

AK Pandey

Court No. - 34

Case :- WRIT - C No. - 24588 of 2015

Petitioner :- Manoj Kumar Srivastava

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Sanjay Pandey

Counsel for Respondent :- C.S.C., Kailash Nath Singh, Mahboob Ahmad, Surya Bhan Singh

Hon'ble Sudhir Agarwal, J.

Hon'ble Ajit Kumar, J.

1. Called in revised. None appeared on behalf of petitioner. However, we ourselves have perused the record.

2. By means of the present writ petition, petitioner has sought the following reliefs:

“(i) Issue a writ order or direction in the nature of certiorari quashing the order dated 18.4.2015 passed by respondent no. 2 by which they are going to disconnect the electricity connection of the petitioner (as Annexure No. 1).

(ii) Issue a writ order or direction in the nature of mandamus directing the respondent no. 2 not to disconnect the electricity connection of the petitioner bearing connection no. 0583/136830.”

3. However, we ourselves have gone through the pleadings, grounds as also reliefs sought and find that petitioner is not able to make out a case so as to justify interference of this Court by granting reliefs, as prayed for.

4. Moreover, it appears that either the cause of action no more survives or that petitioner has lost interest in this matter or it has otherwise become infructuous and, probably for this reason, none is interested to have decided this matter on merits and that is why, counsel for petitioner is absent.

5. Dismissed. Interim order, if any, stands vacated.

Order Date :- 10.11.2017

AK

Court No. - 34

Case :- WRIT - C No. - 24588 of 2015

Petitioner :- Manoj Kumar Srivastava

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Sanjay Pandey

Counsel for Respondent :- C.S.C., Kailash Nath
Singh, Mahboob Ahmad, Surya Bhan Singh

Hon'ble Sudhir Agarwal, J.

Hon'ble Ajit Kumar, J.

1. Sri Raj Kumar Srivastava, 'Nishith' has filed his Vakalatnama on behalf of respondent no.3, which is taken on record.
2. On joint request of learned counsel for parties, put up this matter on 20th February, 2018 showing name of Sri Raj Kumar Srivastava, 'Nishith' as counsel for respondent no.3.

Order Date :- 16.2.2018

Atmesh

Court No. - 34

Case :- WRIT - C No. - 24588 of 2015

Petitioner :- Manoj Kumar Srivastava

Respondent :- State of U.P. and others

Counsel for Petitioner :- Sanjay Pandey

Counsel for Respondent :- C.S.C., Kailash Nath Singh, Mahboob Ahmad, Surya Bhan Singh

Hon'ble Sudhir Agarwal, J.

Hon'ble Ajit Kumar, J.

1. Heard learned counsel for parties and perused the record.
2. Electricity connection of petitioner, who is occupant of House No. 269, Jahageerabad, District Jaunpur, has been disconnected on an objection raised by so-called owner of premises and order passed by Executive Engineer is founded only on the fact that receipt of Nagar Palika Parishad is not of house tax. Despite repeated query, learned counsel for respondents could not show any provision under U.P. Electricity Supply Code, 2005 wherein electric connection can be denied to an occupant of the premises unless house tax receipt is produced by him.
3. A Division Bench of this Court in **Seema Mansoor Vs. U.P. Power Corporation Ltd. Lucknow and others 2014 (6) ADJ 672** while observing in respect to entitlement for electric connection of an occupant of a premises, has said as under:

10. A bare reading of the provisions of the Electricity Act, 2003 go to show that every distribution licensee is under an obligation not only to develop but also to maintain efficient, coordinated and economical distribution system in the area of its supply. The provision of Section 43 of the Electricity Act cast a statutory duty upon the distribution licensee to supply electricity not only to owner but also occupier of premises located within the limits of the area of its supply subject to an application being made by owner or occupier in this regard and

correspondingly the owner or occupier of any premises, as the case may be, has statutory right to supply and obtain such electricity supply from the distribution licensee. Of course, the right is subject to completion of formalities provided for the purpose.”

*“16. From the reading of the aforesaid provisions, it is clear that **licensee is under an obligation to supply electrical energy on a proper application being made and every owner or occupier**, which will include a tenant, of the premises **has statutory right to apply and obtain electricity supply from the licensee** subject to his fulfilling requirements under the provisions of the Electricity Act, 2003 and the Electricity Supply Code 2005. Thus, an application for grant of electricity connection cannot be refused by licensee on the ground that there is no consent of the landlord. From the scheme of the Act and the duties cast upon the licensee and right conferred upon the person making application for supply of electrical energy in case he submits indemnity bond, a lessee/tenant or occupier cannot be refused electricity connection merely for want of consent of the landlord.*

17. Apart from above giving interpretation to the provision suggested by the learned counsel for the respondents would tantamount to nullifying the benefits and protection extended to tenant under the Rent Control Act. A scrupulous landlord would get the electricity connection disconnected, of the premises owned by him and in occupation of tenant, and shall never give his no objection to fresh electricity connection to the tenant forcing him to vacate the premises making the provisions of the Rent Control Act nugatory. Such interpretation shall not only be in the teeth of the provisions of the Act but also opposed to public policy.”

“19. In view of the aforesaid facts and discussions, the petitioner being occupier of the premises in question as a tenant has a legal right to obtain electricity connection and the respondents licensee was under an obligation to give connection for supply of electrical energy and the same could not have been refused solely for want of consent of the owner/landlord of the premises.”

(emphasis added)

4. Following **Seema Mansoor Vs. U.P. Power Corporation Ltd. Lucknow and others (supra)** a this very Division Bench in somewhat similar circumstances in **Writ Petition (Writ-C) No. 17588 of 2015 (Mohammad Iqbal Ansari Vs. State of U.P. and others)** decided on 24.10.2017 allowed the writ petition, set aside the order declining to grant electric connection and directed to issue electric connection to petitioner.

5. In view of above, the impugned order cannot be sustained. The writ petition is allowed. Impugned order dated 18.04.2015 is hereby set aside.

6. Petitioner shall also be entitled to cost quantified to Rs. 10,000/- against respondent-3.

Dt. 20.02.2018

PS

Court No. - 34

C.M. Restoration Application No. 407286 of 2017

In

Case :- WRIT - C No. - 24588 of 2015

Petitioner :- Manoj Kumar Srivastava

Respondent :- State of U.P. and others

Counsel for Petitioner :- Sanjay Pandey

Counsel for Respondent :- C.S.C., Kailash Nath Singh, Mahboob Ahmad, Surya Bhan Singh

Hon'ble Sudhir Agarwal, J.

Hon'ble Ajit Kumar, J.

1. This is an application seeking restoration of writ petition after recall of our order dated 10.11.2017 whereby writ petition was dismissed, though on merits, but in absence of learned counsel for petitioner.
2. Cause shown for non appearance is sufficient.
3. Order dated 10.11.2017 is hereby recalled and writ petition is restored to its original number.
4. This application, accordingly, stands allowed.

Order Date :- 20.2.2018

PS